

Amendment No. 1 to SB0763

Bailey
Signature of Sponsor

AMEND Senate Bill No. 763*

House Bill No. 968

by deleting SECTION 1 and substituting:

SECTION 1. Tennessee Code Annotated, Section 39-17-1504(d), is amended by deleting the subsection and substituting:

(d) A person engaged in the sale or distribution of tobacco, smoking hemp, vapor product, or smokeless nicotine product, or an employee thereof, shall not make or permit to be made any sales of tobacco, smoking hemp, vapor product, or smokeless nicotine product to a person under twenty-one (21) years of age. Prior to making a sale of tobacco, smoking hemp, vapor product, or smokeless nicotine product, a consumer whose physical appearance does not reasonably demonstrate an age of fifty (50) years or older must present to the person or an employee of the person a valid, government-issued document, such as a driver license or other form of identification deemed acceptable to the person or employee that includes the photograph and birth date of the consumer attempting to make a purchase. Consumers exempt under state law from the requirement of having a photo identification shall present identification that is acceptable to the person or the person's employee. The person or person's employee shall make a determination from the information presented whether the consumer is at least twenty-one (21) years of age. In the case of distribution by mail, the distributor of tobacco, smoking hemp, vapor product, or smokeless nicotine product shall obtain from the addressee an affirmative statement that the person is twenty-one (21) years of age or older, and shall inform the recipient that the person is strictly prohibited from distributing

any tobacco, smoking hemp, vapor product, or smokeless nicotine product, as defined by this part, to any person under twenty-one (21) years of age.

AND FURTHER AMEND by deleting from subdivision (A) in the definition of "Vapor product" in SECTION 3 the language "containing nicotine" and substituting "containing consumable material".